

Court No. - 21

Case :- WRIT - C No. - 41276 of 2016

Petitioner :- Om Prakash Puri

Respondent :- Paschimanchal Vidyut Vitran
Nigam And 2 Others

Counsel for Petitioner :- Subhash Gosain

Counsel for Respondent :- Chandan Agarwal

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

Om Prakash Puri is before this Court assailing the electricity bill dated 6.5.2016 and for direction to the respondents to issue correct and revised electricity bill to him so that he can make payment against the same.

Record in question reflects that the petitioner owns a House No.17/124, Mohalla & Post Deputyganj, District Bulandshahar. He applied for electricity connection in December, 2004 for the aforesaid premises and after completing necessary formalities, he was granted electricity connection being Service Connection No.240789 with load of 2 KW for domestic purposes. Thereafter the electricity supply was energized after installing the meter in the premises in question on 18.12.2004. In May, 2016 the petitioner received electricity bill dated 6.5.2016 raising demand of Rs.2,49,846/-. The petitioner approached to the office of respondent no.2 for revising the electricity bill dated 6.5.2016.

Once such is the factual dispute, the same cannot be adjudicated by us under Art.226 of the Constitution of India. The Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained Act. The petitioner can pursue the remedy as is available to him under the Electricity Act, 2003 read with provisions of U.P. Electricity Code, 2005.

The writ petition is dismissed.

Order Date :- 1.9.2016

RKP